THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH, CHANDIGARH
(through web-based video conferencing platform)

Item No. 38
CP (CAA) No. 22/Chd/Hry/2022
(Second Motion)

Under Sections 230-232 of Companies Act, 2013

In the matter of:-

Adva Optical Networking
India Pvt. Ltd. …Petitioner-Transferor Company

With

Adva IT Solutions Pvt. Ltd. ….Petitioner-Transferee Company

Present through Video Conferencing:

Mr. Shivam Narang, Advocate for the petitioner companies.
Mr. Yogesh Putney, Senior Standing Counsel with Mr. Harveet Singh Sehgal and Mr. Yatin Chadha, Advocates for the Income Tax Department.

The compliance affidavit filed vide Diary No. 1108/5 dated 20.09.2022 is taken on record. At the request of senior standing counsel for Income Tax Department, four weeks' time are given to submit the report of the Department. The same be filed within four weeks with a copy in advance to the counsel opposite and response thereto, if any, be filed two weeks thereafter with a copy in advance to the counsel opposite. RD/ROC are also directed to submit their reports within four weeks with a copy in advance to the counsel opposite and response thereto, if any, be filed two weeks thereafter with a copy in advance to the counsel opposite. It is stated by learned counsel for the petitioner companies that it is only the Transferee Company which is the applicant before us, no report is required from the OL. It is further stated that

the Coordinate Bench of NCLT Bench at Bengaluru passed second motion order with respect to the Transferor company. He is directed to place the copy of the order of the Coordinate Bench, Bengaluru on record at least two weeks before the next date of hearing. The matter be listed on 13.01.2023.

Sd/-
(Subrata Kumar Dash)
Member (Technical)

Sd/-
(Harnam Singh Thakur)
Member (Judicial)

December 02, 2022
YP